

ASCII MASTER FLOW – PANEL 1/12: Two populations, one failure mode

CLAIM A -> transgender persons seek recognition of a self-perceived gender

CLAIM B -> denotified, nomadic and semi-nomadic communities seek release from a colonial label

-> SHARED STRUCTURE: recognise identity -> prohibit discrimination -> deliver welfare

-> DIVERGENCE: visible but legally marginalised versus administratively invisible

TEST -> livelihood integration, educational attainment, freedom from discrimination

MUST REMEMBER: Transgender persons, Denotified Tribes, Nomadic Tribes and Semi-Nomadic...

ASCH MASTER FLOW – PANEL 2/12: Certification routes

BASIC CERTIFICATE -> issued by the District Magistrate on self-perceived transgender identity

REQUIREMENT -> no medical or surgical condition attaches to this route

SECTION 7 -> revised male or female certificate after medical intervention

RELATION -> the second route is additional; it is not a precondition for the first

TRAP -> asserting that the Act requires surgery for basic recognition

ASCTII MASTER FLOW – PANEL 3/12: Judgment against statute

NALSA 2014 -> self-identified gender under Articles 14, 15 and 21; welfare directions

NALSA 2014 -> direction to treat as socially and educationally backward and consider benefits

ACT 2019 -> certificate mechanism, prohibitions, offences, advisory Council; Rules 2020

DIFFERENCE -> judicial versus legislative authority; principle versus procedure

RECORDED GAP -> the Act did not fully adopt the backward-class direction

ASCII MASTER FLOW – PANEL 4/12: Prohibition and its forum

DOMAINS -> education, employment, healthcare, goods and public services, residence with family

OFFENCES -> sexual abuse, denial of access to a public place, eviction

MACHINERY -> establishment complaint officer designated to receive complaints

COUNCIL -> advisory, chaired by the Union Minister, without quasi-judicial powers

LIMIT -> a complaint route is not an accessible local enforcement agency

ASCII MASTER FLOW – PANEL 5/12: Umbrella scheme structure

UMBRELLA -> SMILE, administered by the Ministry of Social Justice and Empowerment
SUB-SCHEME 1 -> transgender welfare: Garima Greh, skill development, health and counselling
SUB-SCHEME 2 -> begging rehabilitation, a distinct target group under the same umbrella
SHELTER CONTENT -> accommodation, food, medical care, skill training, recreation
BOUNDARY -> shelter answers safety; the skill component carries livelihood

ASCII MASTER FLOW – PANEL 6/12: Transgender delivery chain

STEP 1 -> application to the District Magistrate for the basic certificate

STEP 2 -> sensitisation deficit produces delay, discretionary rejection or invasive questioning

STEP 3 -> discrimination occurs; the complaint officer route is formal but weakly accessible

STEP 4 -> shelter exists in limited number and spread; smaller towns are underserved

STEP 5 -> skill training exists; formal-employment linkage remains weak because stigma persists

CLOSE DISTINCTION: Transgender identity is not limited to medical transition, legal...

ASCII MASTER FLOW – PANEL 7/12: Colonial classification ledger

1871 -> Criminal Tribes Act stigmatises whole communities as born criminals

MECHANISM -> registration, surveillance and restriction of movement enforced by the state

1952 -> the Act is repealed and the statutory criminal-tribe label is removed

NOT DONE -> rehabilitation was not provided and social stigma was not removed

RULE -> denotified means the label was repealed, not that innocence was declared

ASCII MASTER FLOW – PANEL 8/12: Group definitions and counting limits

DENOTIFIED -> communities denotified after repeal of the 1871 Act

NOMADIC -> communities without fixed habitation that follow seasonal movement

SEMI-NOMADIC -> communities that are partially settled

LIST RULE -> classifications and State lists vary; no unsourced all-India total may be used

CENSUS 2011 -> 4,87,803 in the residual other sex category; incomplete, not identity-perfect

ASCII MASTER FLOW – PANEL 9/12: Commission record

RENKE 2008 -> examined denotified, nomadic and semi-nomadic communities

IDATE 2015 -> National Commission chaired by Bhiku Ramji Idate

FINDINGS -> historical stigma and welfare invisibility; weak enumeration limits targeting

RECOMMENDED -> a permanent statutory commission and a comprehensive central list

STATUS -> the recommended statutory commission has not been enacted

ASCLII MASTER FLOW – PANEL 10/12: Board against commission

CONSTITUTED -> 21 February 2019 under the Ministry of Social Justice and Empowerment

FUNCTIONS -> surveys, coordination of scheme implementation, policy advice

POWER -> may recommend; cannot compel State action

ABSENT -> quasi-judicial powers, inquiry and binding directions

REFORM PROPOSED -> a permanent statutory commission on the existing commission model

ASCII MASTER FLOW – PANEL 11/12: Dedicated scheme card

LAUNCHED -> 16 February 2022 as a dedicated central scheme

COMPONENT -> free coaching for competitive and educational entry

COMPONENT -> health-insurance facilitation including the national health-assurance route

COMPONENT -> community livelihood initiatives; and housing or land support

BOUNDARY -> not a substitute for documents or State-list recognition; coverage nascent

ASCII MASTER FLOW – PANEL 12/12: Invisibility chain

NO CENTRAL LIST -> eligibility fragments across differing State lists or none at all

NO FIXED ADDRESS -> ration card, Aadhaar seeding and caste certificate are blocked

NO DOCUMENTS -> health-assurance, food-security and income-support schemes stay out of reach

MIGRATION CASE -> a community listed in one State loses eligibility on crossing a border

OVERLAP CASE -> backward-class status gained may displace scheme-specific benefits

EVIDENCE LIMIT: AUTHORITY / IMPLEMENTATION: Use NALSA, the Transgender Persons Act/rules,...